MIAMI YACHTING GROUP

IYBA INTERNATIONAL YACHT BROKERS ASSOCIATION

Local Business Tax Receipt
Miami–Dade County, State of Florida
–THIS IS NOT A BILL – DO NOT PAY

7232516
BUSINESS NAME/LOCATION
MIAMI YACHTING GROUP LLC
PAYMENT RECEIVED BY TAX COLLECTOR
75.00 08/23/2022
INT-22-395907

RECEIPT NO.
RENEWAL
7518024

LBT
EXPIRES
SEPTEMBER 30, 2023
Must be displayed at place of business
Pursuant to County Code
Chapter 8A – Art. 9 & 10

YACHT CHARTER BAREBOAT AGREEMENT

Contract Date	11/12/2022	**And Place**	Miami, FL	**Yacht Name**	"Salvaje"
Vessel	43' Canados	**Flag**	USA	Motor Yacht	

Owner of Record:	Luis Morales
Charterer:	Clay Casani
Broker of Record:	Miami Yachting Group LLC 8552899692
Broker of Record Address:	20200 West Dixie Highway Suite 902 Aventura, FL 33180

Start time / date	11:00am - 11/13/22	**End time / date**	04:00pm - 11/13/22	
Starting Port	Miami, FL	**Ending Port**	Miami, FL	
Cruising Area	Miami Local & Biscayne Bay	**Maximum # of Guests**	Overnight – 0	Cruising – 12

Yacht charter fee	$2,200.00
Delivery fees	$0
Taxes	FL Sales Tax 7% ($154.00)
Other	$0
TOTAL	$2,354.00

PAYMENT SCHEDULE

Deposit (Yacht Charter Fee)	N/A	**Due to Broker of Record upon booking date.**

Balance (Yacht Charter Fee)	Paid in Full	
Delivery fees	$0	
Taxes	Paid in Full	
Other	$0	
Total balance payment	Paid in Full	**Due to Broker of Record 48hrs prior to departure.**

All monies are payable to the following Broker of Record's account in cleared funds for immediate onward transmission to the Owner's Representative net of the charter brokerage commission.

SPECIAL CONDITIONS. See Addendum (page 6 of this Agreement)

The OWNER and the CHARTERER expressly agree that Clauses 1-23 with attached Addendum and Exhibit(s), inclusive, form part of this Agreement, and that signed facsimile copies of this Agreement shall be binding.

In accordance with USCG regulations **46 USC 2101, 46 CFR 175.400, 46 CFR 24.10-1**, WHEREAS, the CHARTERER desires to charter the Yacht from the OWNER, and the OWNER is willing to make the Yacht available to the CHARTERER for such purpose, subject to the terms and conditions contained herein;

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NOW THEREFORE, in consideration of the premises, the mutual covenants hereinafter set forth, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. Delivery. The OWNER shall deliver the Yacht at the time and place as specified above, in full commission and proper working order, outfitted as a yacht of her size, type and accommodations; with full equipment inclusive of that required by law, and fully furnished, including all necessary operating and maintenance stores and supplies, laundry of ship's linens, and seaworthy, clean and in good condition throughout and ready for service.

2. Delay in Delivery. The OWNER shall allow demurrage pro rata to the CHARTERER for any delay in delivery. Should it be impossible for the OWNER to make delivery as stipulated for reasons of force majeure (as defined in Clause 15) and should delivery not be made on 11/13/22, the OWNER shall be considered in default and the CHARTERER may cancel this Agreement. In such case the OWNER shall immediately refund to the CHARTERER any charter money paid in advance.

3. Re-delivery. The CHARTERER, at the expiration of this charter, shall re-deliver the Yacht, her equipment and furnishings, free and clear of any indebtedness incurred for the CHARTERER's account to the OWNER at the time and place specified above, in as good condition as when delivery was taken, ordinary wear and tear excepted.

4. Delay in Re-Delivery and Indemnification. If the Yacht is not re-delivered within the charter period, or any proper extension thereof, for reasons attributable solely to the CHARTERER, then for each period of 24 hours, or portion thereof, of delay in re-delivery as aforesaid, the CHARTERER shall pay to the OWNER a sum equal to the charter hire divided by the number of days (period of 24 consecutive hours, or portion thereof) comprised in the charter period, subject to the OWNER's right to recover further additional loss or damages, if any, thereby sustained. The CHARTERER shall indemnify and hold harmless the OWNER against and from any and all liability to third parties for loss or damage attributable to the CHARTERER's acts or omissions.

If re-delivery of the Yacht is delayed by reason of force majeure, re-delivery shall be affected as soon as possible thereafter and the Agreement shall remain in effect with no penalty against the CHARTERER. If the CHARTERER elects to re-deliver the Yacht before the expiration of the charter for reasons not attributable to the OWNER, the CHARTERER shall not be entitled to any return of any charter hire.

5. Breakdown or Disablement after Delivery. If the Yacht, after delivery, sustains breakdown of machinery or is disabled or damaged by fire, grounding, collision or causes other than force majeure so as to prevent the CHARTERER's use of the YACHT for a period of not less than 24 consecutive hours at any time, the same not being brought about by any act or default of the CHARTERER, the OWNER shall make a pro rata return of the charter hire to the CHARTERER of such period in excess of such 24 hours the Yacht shall be disabled or unfit for use. Provided, however, that in case the Yacht is lost or the damage is so extensive that the Yacht cannot be or is not repaired within 48 hours, the same not being brought about by any acts or defaults of the CHARTERER, then charter hire shall be abated pro rata and charter money paid in advance shall be rebated pro rata from the time of such occurrence, and the CHARTERER shall have the right to terminate this charter.

6. Insurance. The OWNER warrants that the Yacht is insured against fire, marine and collision risks, hazards to the voyage, including all engine, hull and yacht equipment, for any and all casualty and loss or damage that may occur to or be suffered by the Yacht for the full term of the charter including any proper extension thereof. Said policies of insurance are to be held by the OWNER. OWNER and CHARTERER acknowledge that BROKERAGE Miami Yachting Group LLC is not responsible for the procurement or possession of insurance for this charter vessel or its dockage. Cancellation insurance and curtailment insurance are not included under the terms of this Agreement. The interest of the CHARTERER may not be covered under the liability portion of the Yacht's insurance policy. Subject to the terms and conditions of the OWNER's yacht insurance policy the interest of the CHARTERER may be not covered as an additional insured. The CHARTERER should determine whether any such insurance coverage and applicable deductibles are adequate and appropriate for the CHARTERER's purposes and, if necessary, arrange for additional coverage prior to the start of the charter period. If the CHARTERER chooses to arrange for separate or supplemental insurance in addition to any insurance provided by the OWNER, the CHARTERER may do so at their own cost and upon their own due diligence. The CHARTERER is responsible for obtaining any and all applicable travel visas and and or any other travel related documents.

7. Running Expenses. The CHARTERER shall accept the Yacht delivered as hereinbefore provided and pay all running expenses in advance during the term of the charter.

8. Liens. The CHARTERER, and the CHARTERER's agents and employees, have no right or power to permit or suffer the creation of any maritime liens against the Yacht. The CHARTERER agrees to indemnify the OWNER for any charges or losses in connection therewith, including reasonable attorneys' fees.

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9. Taxes. Any and all taxes imposed on this charter period are the responsibility of the CHARTERER, and the CHARTERER shall indemnify and hold harmless the OWNER, the Broker of Record and the Owner's Representatives against and from any liability for such taxes, including associated penalties and interest.

10. Restriction of Use. CHARTERER warrants that the Yacht shall be employed exclusively as a pleasure yacht for the sole and proper use of himself, his crew, his family, guests, employees and servants, during the term of this charter and shall not transport merchandise or carry passengers for hire, or engage in any trade nor in any way violate the revenue laws of the United States, or any other Government within the jurisdiction of which the Yacht may be at any time, and shall comply with the law in all respects. The CHARTERER shall insure that the behavior of the charter party shall not cause a nuisance to any person or bring the Yacht into disrepute. The CHARTERER shall be liable for fines, penalties, damages and forfeitures as a result of negligence or intentional acts of the CHARTERER, guests or invitees and the CHARTERER shall indemnify, hold harmless and defend the OWNER, Broker of Record and the Owner's Representative for such acts.

The use, transport or possession of illegal drugs or narcotics, including marijuana, or of any other contraband, or the participation of any other unlawful activity, the transport of illegal aliens, is strictly prohibited and constitutes a breach of the Agreement and shall be cause for immediate termination of the charter without refund of the charter fee and any additional payments made by the CHARTERER and with no recourse against the OWNER.

It is also specifically understood that the possession or use of any weapons (including particularly firearms) is strictly prohibited aboard and failure to comply shall be cause for immediate termination of the charter without refund of the charter fee and any additional payments made by the CHARTERER with no recourse against the OWNER.

11. Non-assignment. The CHARTERER agrees not to assign this Agreement or sub-charter the Yacht without the consent of the OWNER in writing.

12. Cancellation by the CHARTERER. In the event of notice of cancellation of this Agreement on or **48 hours** prior to the commencement of the charter period by the CHARTERER, or, should the CHARTERER fail, after being given written notice to pay any amount due under this Agreement, this Agreement shall be treated as having been repudiated by the CHARTERER and CHARTERER will be required to make all payments due. Notwithstanding the OWNER's right to receive or retain all payments referred to above, the OWNER shall be under a duty to mitigate his loss and in the event that the OWNER is able to re-charter the Yacht for all or part of the charter period under this Agreement, the OWNER will give credit for the net amount of charter hire arising from the re-chartering after deduction of all commissions and all other consequential expenses arising from such re-chartering. The intention is that the OWNER shall receive the same in net proceeds from any re-chartering as would have been received under this Agreement. The OWNER shall endeavor to re-charter the Yacht and shall not unreasonably withhold his agreement to re-charter, although charters which may be reasonably considered detrimental to the Yacht, its reputation or its schedule, may be refused.

13. Cancellation by the OWNER. If prior to the start date of the charter period, the Agreement is cancelled in writing by the OWNER, all monies paid shall be refunded in full forthwith to the Broker of Record for onward transmission to the CHARTERER and the OWNER shall have no further liability whatsoever to the CHARTERER.

Notwithstanding the above, at the CHARTERER's option, the CHARTERER may appoint the Broker of Record to procure the charter of a replacement yacht of similar or superior standard and condition for the charter. If a suitable replacement Yacht is found, a new agreement shall be prepared and this Agreement cancelled. The CHARTERER is not obligated to accept a replacement yacht. In either event, the OWNER shall pay the commissions forthwith on this Agreement.

14. Sale of the Yacht. The OWNER agrees not to sell the Yacht during the charter. If the OWNER agrees to sell the Yacht prior to the start of the charter, the OWNER shall immediately give notice of such sale in writing to the Broker of Record for immediate notification to the CHARTERER. If the Yacht is sold, one of the following provisions shall apply:

a.) Written cancellation of this Agreement shall be provided by the OWNER without delay. The OWNER shall arrange for the buyer to take over this Agreement and perform the charter on the same terms and conditions either by assignment of this Agreement or way of a new charter agreement between the CHARTERER and the buyer. If the charter is to be taken over by the buyer on the same terms and conditions there shall be no penalty against the OWNER and no additional commissions shall be due. In such case the OWNER shall have no further liability whatsoever to the CHARTERER or to the Broker of Record.

b.) If the buyer is unwilling or unable to fulfill the Agreement, the OWNER hereby appoints the Broker of Record to procure the charter of a replacement yacht of the same or superior standards and condition for the charter upon the same terms as this Agreement. If a suitable replacement Yacht is found, a new agreement shall be prepared, the OWNER shall pay any difference for the mutually agreed substitute yacht, and this Agreement shall be cancelled in writing by the OWNER without delay. The OWNER shall pay the commissions due on this Agreement.

c.) If the OWNER is unable to procure a similar or superior yacht for the use of the CHARTERER on the same terms of this Agreement, or should the CHARTERER reject the proposed replacement yacht (the CHARTERER shall not unreasonably reject a substitute yacht of the same or superior standards), then this Agreement shall be considered as having been cancelled by the OWNER in accordance with Clause 13. The OWNER shall pay the commissions due on this Agreement.

15. Force Majeure. In this Agreement "*force majeure*" is defined as any cause directly attributable to acts, events, nonhappenings, omissions, accidents or Acts of God, beyond the reasonable control of the OWNER or the CHARTERER (including, but not limited to, strikes, lockouts or other labor disputes, civil commotion, riots, blockade, invasion, war, fire, explosion, sabotage, storm, collision, grounding, fog, governmental act or regulation, computer virus, biological virus, major mechanical or electrical breakdown beyond the crew's control and not caused by either the OWNER's or the CHARTERER's negligence).

16. Broker of Record Fee. The OWNER and the CHARTERER recognize the Broker of Record as the sole Broker of Record in connection with this Agreement, and the OWNER agrees to pay said Broker of Record the mutually agreed charter brokerage fees in connection with said charter, any extensions, renewals, subsequent charters and/or in connection with the subsequent purchase of the yacht by the CHARTERER within a period of two years from the end date of the charter. If OWNER has not delineated a mutually agreed upon commission with Broker of Record, it will default per this agreement to no less than 15% of the charter retail amount or in the case of a vessel sale, no less than 5% of the gross sale price of the vessel. It is further agreed by the OWNER and the CHARTERER that once this Agreement has been signed by both parties and the agreed deposit of the charter fee has been paid, the said Broker of Record shall have no further obligation or responsibility in connection herewith to either party.

17. Disbursement of Charter Net. The charter fee shall be disbursed to the OWNER as follows:
100% balance on the first business day following the end date of the charter via ACH bank transfer to an account of ownership's choosing.

18. Confidentiality. The parties shall keep the terms and conditions of this Agreement in strict confidence and therefore shall disclose no information concerning this Agreement to any third party, except as required by law.

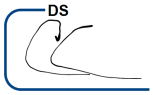
19. Arbitration. Any controversy or claim arising out of or relating to this Agreement, or with the breach thereof, shall be settled by arbitration in accordance with the rules of the American Arbitration Association, such arbitration to be held in Miami, Florida, unless another place is mutually agreed upon. Judgment upon any award reached by the arbitrator(s) may be entered in any court having jurisdiction thereof.

20. Entire Agreement. This Agreement constitutes the entire agreement among the parties and it supersedes any prior agreement or understanding among them, oral or written, all of which are hereby canceled. This Agreement may not be modified or amended other than by a written document signed by both parties.

21. Amendments. Except as otherwise provided herein, the provisions hereof may be amended, supplemented, waived or changed, only by a writing that makes specific reference to this Agreement and is signed by the party as to whom enforcement of any amendment, supplement, waiver or modification agreement is sought.

22. Attorneys' Fees. In any action or proceeding arising out of this Agreement, the prevailing party shall be entitled to recover all of its costs incurred in such action, including reasonable attorneys' fees.

23. Binding effect. All of the terms and provisions of this Agreement, whether expressed or not shall be binding upon, inure to the benefit of, and be enforceable by the parties and their representatives, heirs, and permitted assigns. Any rights given or duties imposed upon the estate of a deceased party shall inure to the benefit of and be binding upon the fiduciary of such decedent's estate in his fiduciary capacity.



CREW SELECTION

It is the CHARTERER's prerogative to secure by their own decision a vessel's competent master and crew. WHEREAS the CHARTERER desires to retain the CONTRACTOR to provision the crew and the yacht and the CONTRACTOR is willing and able to provide such services, subject to the terms and conditions herein. Each crew member shall hold the required licenses and certificates and wear proper attire.

CHARTERER may *elect* to choose crew from the following list and will be responsible for any expense associated with any further additional / supplemental crew selections. Any individual hired by CHARTERER for such purposes shall perform his services under this agreement as an independent contractor and shall be solely responsible for all employer and withholding taxes on crew wages assessed by any authority. Master shall not carry out any directions by CHARTERER that jeopardizes the safety of the vessel, those onboard or the stipulations within said contract. CHARTERER warrants that the master has been elected for hire by CHARTERER and is responsible for the safe navigation of the vessel. CHARTERER has elected the following qualified captain:

☐ - Alonso de Lope	
☐ - Christian Fortul	
☒ - Sebastian Escobar	DS
☐ - Chris Barclay	
☐ - Fred Loury	
☐ - Jose Chapman	
☐ - Ignacio Hernando	
☐ - Manny Silva	

I, Clay Casani, the CHARTERER, certify I had access to and or reviewed a list of available captains of which I am electing the above captain from.

by: Clay Casani DocuSigned by: EE7E2E201D1D4C9... 11/13/2022

CHARTERER **Date**

by: Luis Morales DocuSigned by: 6A7373A7D8F14D8... 11/13/2022

OWNER or OWNERS REPRESENTATIVE **Date**

by: Sebastian Escobar DocuSigned by: B8C50EA04D5C42F... 11/13/2022

CONTRACTOR **Date**

Addendum

CHARTERER agrees as follows:

- Maximum of __12__ guests + themselves at any time aboard the vessel while underway, on anchor or moored at dock.
- Guests will not sit on railing or hang limbs over the side of the vessel while underway
- Guests will not be on swim platform on vessel's stern while underway. Guests will not enter the water at anytime unless given explicit approval by captain of the vessel and engines are shut down.
- NO FLUSHING of feminine hygiene products, paper towels or other foreign objects aside from bodily waste in vessel's lavatory facilities. A $400 service call will result at CHARTERER's expense.
- No cooking onboard allowed without explicit approval / supervision of Captain or Steward / Stewardess.
- NO SMOKING permitted.
- No self tanning lotion or bronzer allowed onboard or on your person as it stains yacht upholstery.
- No denim or jean articles of clothing as the dyes can seep into the yachts upholstery when wet.
- No temporarily dyed hair/wigs allowed.
- No red wine or other staining beverages allowed.
- If any guests should damage upholstery, flooring or any of other surface with the dye from wet clothing, hair or beverages, CHARTERER will be charged to repair or replace the damaged items and or surfaces.
- No BBQ equipment, hookah, shisha, or other items that utilize open flames, gas, propane, coals, etc.
- No glitter or confetti is to brought onboard.
- There are no pets allowed on the vessel.
- Any children are the responsibility of, and under the supervision of the CHARTERER at all times.
- Late arrival of CHARTERER or their guests does not alter end time of this charter.
- No illegal drugs or firearms / weapons of any kind will be brought on pier, onboard vessel or tender by CHARTERER, their guests, employees or otherwise CHARTERER affiliated group. Such action qualifies as a breech of this agreement resulting in immediate charter termination with zero refund and notification of law enforcement authorities.
- CHARTERER acknowledges this vessel has a NO SMOKING policy with regards to cigars, cigarettes or other combustibles at any time aboard this vessel and they will be charged or forfeit their security deposit for any smoke or burn related damages that occur to the vessel from themselves or their guests including but not limited to cushions, flooring, walls, ceilings, deck or fiberglass.
- CHARTERER is responsible for all dockage or landing fees that may occur as a result of the vessel mooring or docking for the duration of this contract.

Security Deposit

A __$500.00__ damage deposit is required for this booking. If no damages occur during your charter from yourself or your guests to vessel, its equipment, toys or systems, security deposit is fully refundable after verification by charter staff that no damage has occurred. If damages are present charter staff will notify you prior to disembarking. The Security Deposit, if applicable, shall be held by the Broker of Record and may be used in or towards any liability that the CHARTERER may incur under any terms and conditions of this Agreement. Any refund shall be made within five (5) business days of the end date of the charter period.

Jet Ski Law Acknowledgement

All toy usage during charter shall be governed when captain deems such usage to be safe and appropriate with regards to weather and anchorage conditions. Per Florida Law, to drive a jet ski, anyone born on or after January 1, 1988 is required to either have successfully completed a National Association of State Boating Law Administrators (NASBLA) approved boating education course or have passed a course equivalency or temporary certificate examination and have in their possession a boating education ID (https://myfwc.com/boating/regulations). CHARTERER acknowledges that they and their guests will hold all the proper licenses required to operate any equipment prior to their booking. Should CHARTERER or their guests fail to meet the above requirements, it may result in a loss of jet ski, toy or other equipment time without any refund or compensation.

Yacht Toy Inclusion / Exclusion List

Vessel does not include a jet ski or tender.

by: Clay Casani DocuSigned by: EE7E2E201D1D4C9... 11/13/2022

CHARTERER **Date**

Credit Card Authorization & Acknowledgement of Charges

CHARTERER certifies they are an authorized card holder of the card used to provision payment. CHARTERER understands and accepts personal responsibility for any damages caused by themselves or their guests to the vessel, its systems, equipment or toys from purposeful, negligent or accidental behavior. CHARTERER authorizes Miami Yachting Group LLC to charge CHARTERER for any repair or replacement of parts for said damages, equipment, toys, finishings or systems aboard the vessel incurred by CHARTERER, their guests or participants. CHARTERER will provide a valid credit card or other payment method to provision payment in the event that such damage to vessel, its systems, toys, finishings or equipment occurs. CHARTERER authorizes by accepting terms, Miami Yachting Group LLC to charge ANY credit card on file with remaining charter balance, gratuity or tip and or any charter associated additional fees, upgrades, special requests, damages or repairs that incur prior to vessel departing dock, while underway or after charter returns to port. By boarding this vessel and departing port CHARTERER herby accepts vessel and agrees to enclosed charter terms and prices. If vessel is a replacement option for another previous booking, CHARTERER agrees by boarding and departing port this vessel has met their expectations as a suitable substitute and herby releases Miami Yachting Group LLC in it's obligation to provide an agreed upon vessel for charter. CHARTERER acknowledges that they must, in writing, notify Miami Yachting Group LLC if charter vessel does not meet their expectations prior to the vessels departure from its respective dock. Any cancelable weather conditions as outlined in Miami Yachting Group LLCs Terms of Service must exist at time of departure to qualify as valid cancelable hazardous weather conditions. By boarding and departing port on this charter vessel CHARTERER accepts the vessel, certifies that it meets their expectations and waives their right to a refund or credit card chargeback for product not being as described.

CHARTERER acknowledges they will bring the below referenced credit card with them in person with their matching ID for verification purposes in order to board and depart on their charter vessel. CHARTERER understands if they do not bring their ID and matching credit card used to book the vessel, it may result in a loss of their charter time without refund or compensation.

LAST 4 DIGITS OF CARD(S) USED: MasterCard 1796

by: Clay Casani DocuSigned by: EE7E2E201D1D4C9... 11/13/2022

CHARTERER **Date**

Miami Yachting Group LLC Terms of Service & Disclaimer

CHARTERER and OWNER acknowledge and certify that Miami Yachting Group LLC does not assume nor is responsible for the care, custody, movement, maintenance, repair, control, navigation or storage of the vessel, its systems, equipment or toys. OWNER and CHARTERER acknowledge that the BROKER OF RECORD Miami Yachting Group LLC is not responsible for the procurement or possession of insurance for the vessel, its dockage, equipment or toys. Any brokerage procurement of a docking or mooring space for the vessel to make available for usage by clientele is not to be deemed as an assumption of the care, custody, or control. CHARTERER and OWNER acknowledge that Miami Yachting Group LLC is not responsible for the safety, security, dockage, movement or protection of the vessel, its toys or equipment at any location the vessel is moored, stored, docked or anchored at. Any captain, mate, stewardess or other crewing option offered to CHARTERER for usage are independent contractors and are not employees of Miami Yachting Group LLC. Miami Yachting Group LLC assumes no responsibility for the actions of vessel crew or any other vessel associated personnel. CHARTERER and OWNER may choose to utilize Miami Yachting Group LLCs suggested crewing option referrals, repair personnel, technicians, mechanics, vendors or any other marine industry related agency options at their own risk. Any personnel suggestions are offered to CHARTERER and or OWNER by Miami Yachting Group LLC on a courtesy referral basis free of any obligations for their usage by CHARTERER or OWNER. Miami Yachting Group LLC is not responsible for any referred personnel's actions, inactions, negligence or purposeful behavior that may result in vessel, toys or equipment damage or loss or any personal injury claims, losses or death that may arise from the usage of referred independent contractors, agents, repair technicians, mechanics or vendors. CHARTERER and OWNER, their next of kin, heirs and personal representatives agree to hold harmless Miami Yachting Group LLC from any and all actions, inactions and or damage to vessel or its systems, toys or equipment by CHARTERER, their guests or invitees or any and all referral based personnel suggestions offered by Miami Yachting Group LLC to CHARTERER and or OWNER. Miami Yachting Group LLC shall be held harmless by CHARTERER and OWNER, their next of kin, heirs, personal representatives, guests or invitees for any damage or loss to the vessel, its toys or equipment or from any claims of loss, death or injury arising as a result of general usage, factory defects, negligence of maintenance, failure to repair, system malfunction, lack of preventative upkeep, general care and or storage of vessel, its toys, systems or equipment. Violators shall be liable for all attorney's fees and costs incurred by Miami Yachting Group LLC as a result of a violation of this provision.

CHARTERER and OWNER acknowledge and agree to Miami Yachting Group LLCs Terms of Service and disclaimer.

by: Clay Casani DocuSigned by: EE7E2E201D1D4C9... 11/13/2022

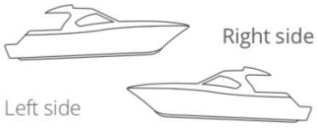
CHARTERER **Date**

by: Luis Morales DocuSigned by: 6A7373A7D8F14D8... 11/13/2022

OWNER or OWNERS REPRESENTATIVE **Date**

Pre Departure Assessment of Vessel Condition

Hull Condition
Describe any existing visible damage to the vessel's hull.



☐No visible damage to report.
☐Damage exists, describe any damage and location:

Interior Condition
☐No visible damage to report.
☐Damage exists, describe any damage and location:

Mechanical, Systems, Running Gear Condition
Describe any damage and location:
☐No visible damage to report.
☐Damage exists, describe any damage and location:

Any other comments or noted damage:

Life Jackets
It is the responsibility of elected master of vessel to certify that life jackets are onboard for each passenger prior to departure.

Pre Departure Safety Check List

☐ First Aid Kit	☐ Anchor	☐ Forward/reverse/throttle functioning
☐ Horn	☐ Windlass	☐ GPS operation
☐ Flares	☐ Condition of hull	☐ Compass
☐ Fire extinguishers	☐ Fresh water fill cap(s)	☐ Navigation lights
☐ Whistle / Airhorn	☐ Fresh water tank filled	☐ Anchor light
☐ PFD's	☐ Fuel tank cap(s)	☐ Shore power cord
☐ Fenders	☐ Check fuel	☐ Bilge pump functioning
☐ Dock lines	☐ Check oil	☐ Operation of head
☐ Start engine	☐ Check transmission fluid	☐ Compass
☐ Check exhaust flow	☐ Check coolant level	☐ Navigation lights
☐ Fuel for motor	☐ Battery visual check	☐ Boat documentation

On Water Assistance Emergency Contact Channel is CH. 16 on VHF radio

DocuSign Envelope ID: EBA16672-2434-4BB4-BB7B-C4CCE2D9607D

MIAMI YACHTING GROUP

IYBA INTERNATIONAL YACHT BROKERS ASSOCIATION

YACHT SERVICES AGREEMENT

Contract Date	11/12/2022	**And Place**	Miami, FL	**Yacht Name**	"Salvaje"
Vessel	43' Canados	**Flag**	USA	Motor Yacht	
Crew	Captain plus 1 crew = 2 total crew				

Start time / date	11:00am - 11/13/22	**End time / date**	04:00pm - 11/13/22
Cruising Area	Miami Local & Biscayne Bay		

Contractor	Sebastian Escobar
Charterer	Clay Casani
Broker of Record	Miami Yachting Group LLC 8552899692
Broker of Record Address	20200 West Dixie Highway Suite 902 Aventura, FL 33180

Yacht services fee	$240.00	
Advanced provisioning allowance (APA)	$60.00	*APA disbursed upon receipt of the balance payment in cleared funds.*
TOTAL	$300.00	

PAYMENT SCHEDULE

Deposit (Yacht Services Fee)	N/A	**Due to Broker of Record upon booking date.**

Balance (Yacht Services Fee)	Paid in Full	
Advanced provisioning allowance (APA)	Paid in Full	
Total balance payment	Paid in Full	**Due to Broker of Record 48hrs prior to departure.**
All monies are payable to the Broker of Record's account in cleared funds for immediate onward transmission to the Contractor's Representative net of the charter brokerage commission.		

SPECIAL CONDITIONS. The CHARTERER shall remit an Advance Provisioning Allowance (APA) to pay for expenses incurred aboard during the charter which shall be charged at cost to the CHARTERER. The master shall use these funds to pay for expenses, including but not limited to:

- replacement fuel and lubricants for the Yacht, its tenders and water sports equipment
- food and beverage
- harbor and pilotage fees, water, electricity, communication costs of any kind whatsoever
- customs formalities and airport transportation
- personal laundry and any additional services or supplies as may be required or requested
- crew food and beverage

A crew gratuity of 15-20% of the full charter rate is customary, but at the CHARTERER'S sole discretion.

The CONTRACTOR and the CHARTERER expressly agree that Clauses 1-12, inclusive, form part of this Agreement, which consists of three (3) pages plus any Addenda and that signed facsimile copies of this Agreement shall be binding.

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WHEREAS, the CHARTERER has agreed to charter the Yacht under a separate Yacht Charter Agreement wherein it is the CHARTERER's obligation to staff the said Yacht with a competent master and crew;

WHEREAS the CHARTERER desires to retain the CONTRACTOR to man and provision the Yacht, and the CONTRACTOR is willing to provide such services, subject to the terms and conditions contained herein;

NOW THEREFORE, in consideration of the premises, the mutual covenants hereinafter set forth, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. Crew. Each crew member shall hold any and all required licenses / certificates and shall be properly uniformed.

2. Crew Services. The CHARTERER shall provide the master and crew with food and quarters aboard the Yacht while retained. The CONTRACTOR shall perform his services under this Agreement as an independent contractor and shall be solely responsible for all employer and/or withholding taxes on crew wages assessed by any authority.

The master shall act at the CHARTERER's direction, provided, however, that the master shall not have to carry out any order that jeopardizes the safety of the Yacht or those on board.

Children in the charter party shall be supervised by an adult member of the charter party at all times.

The CONTRACTOR shall insure that no member of the crew shall use or possess: i.) any illegal drugs, including marijuana
ii.) any firearms or weapons

The CONTRACTOR shall immediately terminate any crew member(s) in violation of this Clause.

3. Advance Provisioning Allowance (APA). Having paid the APA, the CHARTERER shall be advised by the master, at intervals, as to the disbursement of the APA and shall, if the balance remaining becomes insufficient in light of the current expenditure, pay in cleared funds either directly to the master, or to the Broker of Record, a sufficient sum to maintain an adequate credit balance. The CHARTERER agrees that the purpose of the APA is to cover on board expenses and is not intended for expenses incurred ashore, e.g., meals and transportation, etc.

The CONTRACTOR shall ensure the master will exercise due diligence in the expenditure of the APA. Prior to disembarkation at the end of the charter, the master shall present a detailed written accounting to the CHARTERER of sums received and disbursed and shall refund to the CHARTERER in cleared funds, or to the Broker of Record for onward forwarding to the CHARTERER, any amount paid by him in excess of amounts expended.

4. Use. The CHARTERER shall restrict the cruising of the Yacht to the cruising area designated in this Agreement and to regions within the cruising area in which the Yacht is legally permitted to cruise. The Yacht shall not navigate beyond the limits set forth in the Yacht's insurance policy. The master shall be responsible for compliance and the CHARTERER shall abide by the master's decision in this regard.

5. Refunds. i) Refund of Yacht Services Payment. If the Yacht suffers delay in delivery or sustains breakdown or disablement after delivery, the payment for crew services shall be refunded in the same manner as set forth in Clauses 2 and 5 of the Bareboat Charter Agreement. ii) Refund of the Advance Provisioning Allowance. Unspent APA shall be refunded to the CHARTERER if the charter is cancelled for any reason not attributable to the CHARTERER.

6. Disbursement of Monies. The yacht services payment shall be disbursed to the CONTRACTOR as follows: 100% balance on the first business day following the end date of the charter via ACH bank transfer to an account of contractor's choosing. The APA shall be disbursed to the captain upon receipt of the balance payment in cleared funds.

7. Confidentiality. The parties shall keep the terms and conditions of this Agreement in strict confidence and therefore shall disclose no information concerning this Agreement to any third party, except as required by law.

8. Arbitration. Any controversy or claim arising out of or relating to this Agreement, or with the breach thereof, shall be settled by arbitration in accordance with the rules of the American Arbitration Association, such arbitration to be held in Miami, Florida, unless another place is mutually agreed upon. Judgment upon any award reached by the arbitrator(s) may be entered in any court having jurisdiction thereof.

9. Entire Agreement. This Agreement constitutes the entire agreement among the parties, and it supersedes any prior agreement or understanding among them, oral or written, all of which are hereby cancelled. This Agreement may not be modified or amended other than by a written document signed by both parties.

10. Amendments. Except as otherwise provided herein, the provisions hereof may be amended, supplemented, waived or changed, only by a writing that makes specific reference to this Agreement and is signed by the party as to whom enforcement of any amendment, supplement, waiver or modification agreement is sought.

11. Attorneys' Fees. In any action or proceeding arising out of this Agreement, the prevailing party shall be entitled to recover all of its costs incurred in such action, including reasonable attorneys' fees.

12. Binding effect. All of the terms and provisions of this Agreement, whether expressed or not shall be binding upon, inure to the benefit of, and be enforceable by the parties and their representatives, heirs, and permitted assigns. Any rights given or duties imposed upon the estate of a deceased party shall inure to the benefit of and be binding upon the fiduciary of such decedent's estate in his fiduciary capacity.

HAVING HAD AN OPPORTUNITY TO CONSULT WITH COUNSEL OF THEIR CHOICE, AND HAVING READ AND UNDERSTOOD ALL PORTIONS OF THESE AGREEMENTS, THE PARTIES IRREVOCABLY SET THEIR HANDS AND SEAL THIS AGREEMENT WITH THE DAY AND YEAR WRITTEN BELOW.

by: Clay Casani DocuSigned by: EE7E2E201D1D4C9... 11/13/2022

CHARTERER **Date**

by: Luis Morales DocuSigned by: 6A7373A7D8F14D8... 11/13/2022

OWNER or OWNERS REPRESENTATIVE **Date**

by: Sebastian Escobar DocuSigned by: B8C50EA04D5C42F... 11/13/2022

CONTRACTOR **Date**

by: Miami Yachting Group LLC DocuSigned by: Miami Yachting Group LLC 34A354848E39471... 11/13/2022

BROKER OF RECORD **Date**

DocuSign Envelope ID: EBA16672-2434-4BB4-BB7B-C4CCE2D9607D

EXHIBIT "A"
INDEMNIFICATION FORM

1. I agree to release, indemnify, and hold harmless Miami Yachting Group LLC, its agents and contractors, the yacht, the owner, owner's representative(s), contractor, contractor's representative(s), other brokers, captain and yacht manager, yacht broker of record, their employees and agents, and the yacht's crew (together, the "Indemnified parties") against and from any claim or cause of action for injury, death, or other damage, whether due to the active or passive negligence of the indemnified parties or otherwise, arising from, or relating to, my use, or my guests use of the yacht's water toys (including, without limitation, dinghies, waverunners, jet skis, water skis, paddle boards, rafts, tubes, inflatable toys, kneeboards, windsurfers, snorkel and fishing gear, seabobs and flyboards), now or hereafter.

2. Covenant not to sue. Myself including any of my representatives, hereby absolutely and unconditionally and irrevocably covenant and agree not to sue owner, broker, captain or their agents or representatives, at law, in equity or in any regulatory proceeding on the basis of any claim arising out of or relating to this agreement. I shall be liable for all attorney's fees and costs incurred as a result of a violation of this provision.

3. Release/limitation of liability/liquidated damages [please read carefully]. Except as set forth herein, I agree that owner, their agents and employees, the broker and the captain shall not be liable for, and are released from any injury including but not limited to (i) lost profits, whether such profits are deemed direct or indirect or consequential, even if owner, broker or captain were advised of such damages; (ii) incidental, special, or exemplary/ punitive damages of any type; (iii) personal injury damages of any nature whatsoever; or (iv) any other claims, actions or damages whether in equity or at law; arising from or relating to this agreement, the charter and use of the yacht, its systems, equipment, water toys or the services provided by anyone in connection with the charter, or any of the Watercraft items provided with the yacht, whether such damages are caused by breach of this agreement, fraud, negligence, intentional misconduct, gross negligence or other misconduct by owner, broker or captain and includes all risks, whether known or unknown, associated with the charter of the yacht. In no event shall the maximum amount of liability to the charterer (including guests and invitees) by the owner and his agents, the broker or the captain, collectively exceed the amounts paid to charter the yacht listed on the yacht charter agreement.

4. Clauses 2 and 3 shall survive termination of this agreement.

<u>I represent and warrant to the Indemnified Parties that:</u>

5. I recognize that use of water toys and boating related activities involves certain dangers, including equipment failure; adverse sea and weather conditions; and negligent acts of fellow users. I specifically assume all such risks.

6. I am physically fit to operate the water toys and engage in boating related activities. I have no heart, lung, or other medical problems that might be aggravated by participating in such activities. I certify that any of my guests involved in such activities will be advised by myself of the rigors of participating in boating associated activities.

7. I will not operate the water toys under the influence of alcohol, any illegal drug, or any other medication that might adversely affect my ability to operate the water toys or engage in boating activities. I will supervise my guests and inform them of the dangers of being on a boat, operating water toys and or being in the water under the influence of drugs or alcohol.

8. Myself and my guests will inspect all water toys and equipment to be used, regardless who owns them, prior to usage. If, while participating in the boating activities, myself or my guests observe any unusual hazard or condition, which I/he/she believes jeopardizes my/his/her personal safety or that of others, I/he/she will remove myself/ himself/herself from participation in the boating activities, immediately return to shore if said action can be done safely, and immediately bring said hazard or condition to the attention of the Owner.

9. I am aware that the yacht has limited medical capabilities, and that, in the event of my illness or injury, the crew must summon medical assistance. Accordingly, any required treatment will be delayed until medical assistance arrives or I can be moved to a proper medical facility, which may be at great distance from the yacht. I will by proxy relay the above information to the entirety of my group.

I have read and understand the foregoing in its entirety. I agree to the terms and conditions stated above, which shall bind me, my heirs, and my personal representatives.

by: Clay Casani DocuSigned by: EE7E2E201D1D4C9... 11/13/2022

CHARTERER **Date**